

BEFORE THE  
FEDERAL MARITIME COMMISSION

---

DOCKET NO. 24-23

---

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

---

**COMPLAINANT SAMSUNG'S RESPONSES TO RESPONDENT HMM'S  
STATEMENT OF MATERIAL FACTS**

---

Complainant Samsung Electronics America, Inc. ("SEA") respectfully submits this Response to Respondent HMM Co., Ltd.'s ("HMM") Statement of Material Facts in support of its Concurrently filed Motion for Partial Summary Judgment.

1. On or about April 3, 2025, [SEA] filed a Verified Amended Complaint with the Federal Maritime Commission, naming [HMM] as Respondent.

**SEA RESPONSE:**

SEA does not dispute this statement.

2. The Verified Amended Complaint alleges that HMM violated several provisions of the U.S. Shipping Act of 1984, as amended, specifically: 46 U.S.C. § 41102(c), 46 U.S.C. §

41104(a)(3), 46 U.S.C. § 41102(d), 46 U.S.C. § 41104(a)(10), 46 U.S.C. § 41104(a)(15), and 46 U.S.C. § 41104(a)(14).

**SEA RESPONSE:**

SEA does not dispute this statement.

3. Among the relief sought by the Verified Amended Complaint is the payment of reparations to SEA by HMM for damages purportedly suffered by SEA as a result of HMM's allegedly unlawful conduct.

**SEA RESPONSE:**

SEA agrees that it seeks reparations totaling at least \$110 million, which is discussed in the Verified Amended Complaint.

4. The spreadsheet annexed hereto as Exhibit A was produced by SEA, bearing Bates no. SEA-HMM-2761333, in response to discovery requests served by HMM requiring SEA to identify the shipments which comprise the claims it has alleged against HMM. The bills of lading described in the spreadsheet annexed hereto as Exhibit A name SEA as consignee of the cargo covered by those bills of lading.

**SEA RESPONSE:**

SEA agrees that it produced the spreadsheet annexed to HMM's Motion as Exhibit A with the Bates No. SEA\_HMM-2161333. SEA disagrees that it produced the spreadsheet in response to discovery requests requiring SEA to identify the shipments which comprise the claims it has alleged against HMM. SEA produced the spreadsheet on July 9, 2025, in response to HMM's first set of discovery requests. The interrogatory to which HMM refers (HMM Interrogatory No. 16) was not served on SEA until July 23, 2025 with HMM's

second set of discovery requests. *See* Complainant's Resp. & Objs. to Resp't's Second Set of Interrogs. & Reqs. for Produc. at 5 (HMM's Interrogatory No. 16 asked SEA to "[d]escribe the bill of lading numbers, invoice numbers, container numbers and amounts claimed by SEA for each Subject Shipment."). In response, SEA identified the spreadsheet (SEA\_HMM-276133) as a "summary" and expressly cautioned that "[i]t will be the burden of HMM to provide this very information on an each-container basis as it was HMM's

The spreadsheet at SEA\_HMM-2161333 lists bills of lading and containers for which SEA was wrongfully assessed charges and made payments as a result of violations of the Shipping Act by HMM as alleged in the VAC, but SEA's claims are not limited only to the charges listed in the spreadsheet, and therefore SEA disputes HMM's statement that the spreadsheet "identif[ies] the shipments which comprise the claims it has alleged against HMM." SEA agrees that it is named as the consignee of the cargo covered by the bills of lading or, if not listed as consignee for whatever reason, it was in fact the consignee for all shipments listed on Exhibit A.

5. Applying Excel's pivot function to search the data in Exhibit A, HMM created a list of the claims which were discharged in Vancouver, Canada ("Canada Shipments"). The list of the Canada Shipments has been attached hereto in its native form as Exhibit B and in a PDF form as Exhibit C.

**SEA RESPONSE:**

SEA is unable to attest to how HMM created Exhibit B or C. Exhibit C appears to reflect the bills of lading and associated container numbers reported as having a port of discharge in Vancouver, Canada, that are the subject of HMM's motion, which HMM identifies as

the “Canada Shipments.”

6. By email dated April 24, 2026, counsel for HMM identified the Canada Shipments to counsel for SEA, provided case law confirming that the Federal Maritime Commission lacked subject matter jurisdiction over claims derived from the Canada Shipments and requested that those claims be voluntarily dismissed. A true and accurate copy of the email is annexed hereto as Exhibit D.

**SEA RESPONSE:**

SEA admits that counsel for HMM sent the email annexed as Exhibit D, which included HMM’s request that SEA “consider immediately withdrawing its claim with respect to all cargos that did not move in U.S. trade,” but disputes the assertion that the cited case law “confirm[ed] that the Federal Maritime Commission lacked subject matter jurisdiction over claims derived from the Canada Shipments...”

7. By email dated June 8, 2026, SEA’s counsel declined to dismiss the claims derived from the Canada Shipments. A true and accurate copy of that email is annexed hereto as Exhibit E.

**SEA RESPONSE:**

SEA confirms that it sent the email annexed as Exhibit E.

Respectfully Submitted,

**HOLLAND & KNIGHT LLP**

By: /s/ Gerald A. Morrissey III

Christopher R. Nolan

Marisa Marinelli

Sean Sheely

Jasmine Sorrentino

Allison Skopec

31 West 52nd Street

New York, NY 10019

Telephone: (212) 513-3200

chris.nolan@hklaw.com

marisa.marinelli@hklaw.com

sean.sheely@hklaw.com

jasmine.sorrentino@hklaw.com

allison.skopec@hklaw.com

*Counsel to Complainant Samsung Electronics America, Inc*

Gerald A. Morrissey III

Kristine O. Little

Allison J. Luzwick

Ashleigh T. Higgs

800 17th Street N.W., Suite 1100

Washington D.C., 2006

Telephone: (202) 469-5497

gerald.morrissey@hklaw.com

kristine.little@hklaw.com

allison.luzwick@hklaw.com

ashleigh.higgs@hklaw.com